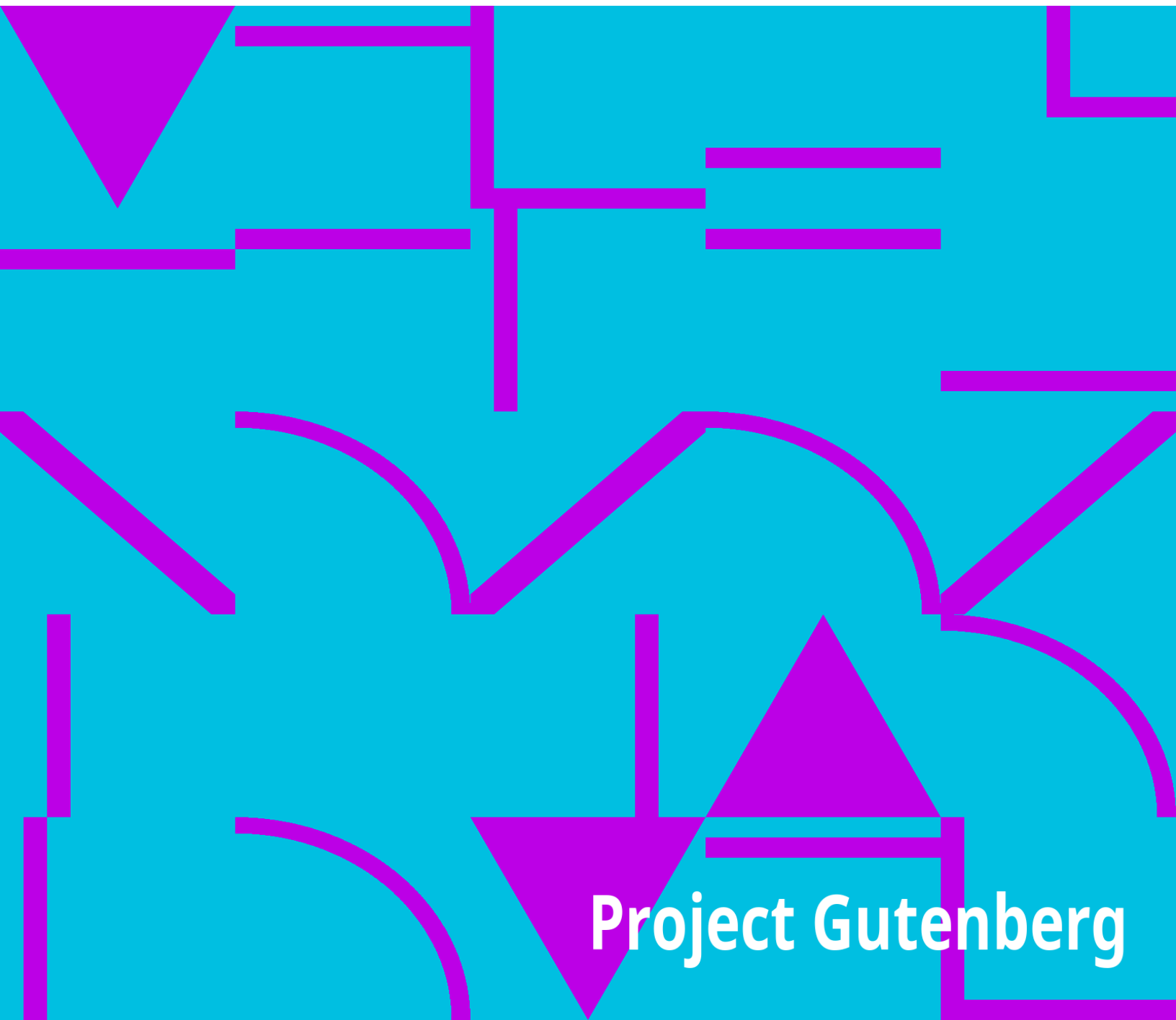


Self-Determining Haiti

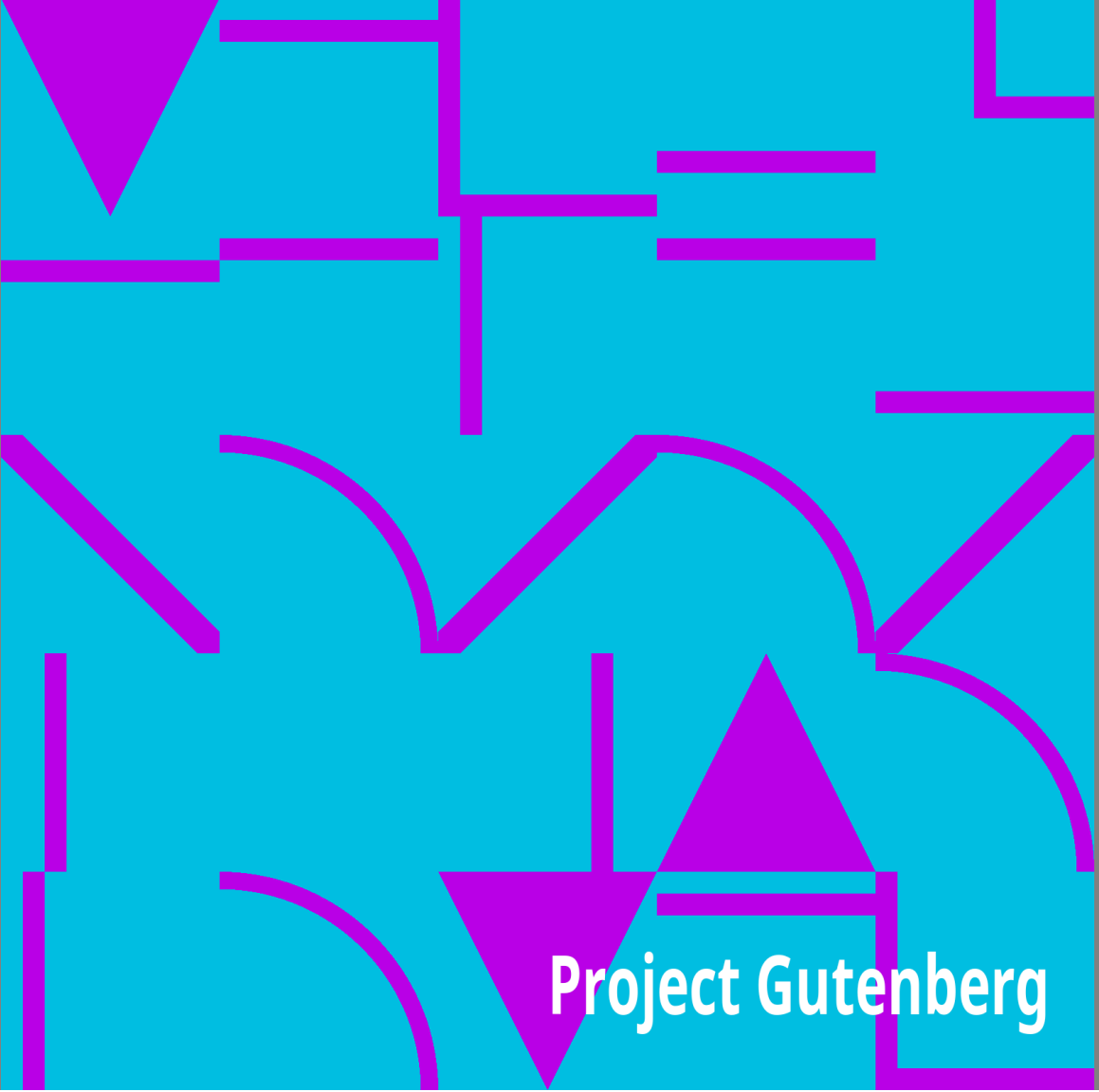
James Weldon Johnson

The background of the lower half of the image is a solid cyan color. Overlaid on this are various magenta geometric shapes and lines. These include straight lines of varying lengths and orientations, some forming right angles. There are also several curved lines, some of which form semi-circles or arcs. A few solid magenta triangles are scattered throughout, including one in the top left and one in the bottom center. The overall effect is a complex, abstract pattern.

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James Weldon Johnson



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DETERMINING HAITI ***

Self-Determining Haiti

BY

JAMES WELDON JOHNSON

Four articles reprinted from *The Nation* embodying a report of an investigation made for

THE NATIONAL ASSOCIATION FOR THE ADVANCEMENT OF
COLORED PEOPLE

Together with Official Documents

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FOREWORD

The articles and documents in this pamphlet were printed in *The Nation* during the summer of 1920. They revealed for the first time to the world the nature of the United States' imperialistic venture in Haiti. While, owing to the censorship, the full story of this fundamental departure from American traditions has not yet been told, it appears at the time of this writing, October, 1920, that "pitiless publicity" for our sandbagging of a friendly and inoffensive neighbor has been achieved. The report of Major-General George Barnett, commandant of the Marine Corps during the first four years of the Haitian occupation, just issued, strikingly confirms the facts set forth by *The Nation* and refutes the denials of administration officials and their newspaper apologists. It is in the hope that by spreading broadly the truth about what has happened in Haiti under five years of American occupation *The Nation* may further contribute toward removing a dark blot from the American escutcheon, that this pamphlet is issued.

Self-Determining Haiti

By JAMES WELDON JOHNSON

I. THE AMERICAN OCCUPATION

TO know the reasons for the present political situation in Haiti, to understand why the United States landed and has for five years maintained military forces in that country, why some three thousand Haitian men, women, and children have been shot down by American rifles and machine guns, it is necessary, among other things, to know that the National City Bank of New York is very much interested in Haiti. It is necessary to know that the National City Bank controls the National Bank of Haiti and is the depository for all of the Haitian national funds that are being collected by American officials, and that Mr. R. L. Farnham, vice-president of the National City Bank, is virtually the representative of the State Department in matters relating to the island republic. Most Americans have the opinion—if they have any opinion at all on the subject—that the United States was forced, on purely humane grounds, to intervene in the black republic because of the tragic coup d'etat which resulted in the overthrow and death of President Vilbrun Guillaume Sam and the execution of the political prisoners confined at Port-au-Prince, July 27-28, 1915; and that this government has been compelled to keep a military force in Haiti since that time to pacify the country and maintain order.

The fact is that for nearly a year before forcible intervention on the part of the United States this government was seeking to compel Haiti to submit to "peaceable" intervention. Toward the close of 1914 the United States notified the government of Haiti that it was disposed to recognize the newly-elected president, Theodore Davilmar, as soon as a Haitian commission would sign at Washington "satisfactory protocols" relative to a convention with the United States on the model of the Dominican-American Convention. On December 15, 1914, the Haitian government, through its Secretary of Foreign Affairs, replied: "The Government of the Republic of Haiti would consider itself lax in its duty to the United States and to itself if it allowed the least doubt to exist of its irrevocable intention not to accept any control of the administration of Haitian affairs by a foreign Power." On December 19, the United States, through its legation at Port-au-Prince, replied, that in expressing its willingness to do in Haiti what

had been done in Santo Domingo it "was actuated entirely by a disinterested desire to give assistance."

Two months later, the Theodore government was overthrown by a revolution and Vilbrun Guillaume was elected president. Immediately afterwards there arrived at Port-au-Prince an American commission from Washington—the Ford mission. The commissioners were received at the National Palace and attempted to take up the discussion of the convention that had been broken off in December, 1914. However, they lacked full powers and no negotiations were entered into. After several days, the Ford mission sailed for the United States. But soon after, in May, the United States sent to Haiti Mr. Paul Fuller, Jr., with the title Envoy Extraordinary, on a special mission to apprise the Haitian government that the Guillaume administration would not be recognized by the American government unless Haiti accepted and signed the project of a convention which he was authorized to present. After examining the project the Haitian government submitted to the American commission a counter-project, formulating the conditions under which it would be possible to accept the assistance of the United States. To this counter-project Mr. Fuller proposed certain modifications, some of which were accepted by the Haitian government. On June 5, 1915, Mr. Fuller acknowledged the receipt of the Haitian communication regarding these modifications, and sailed from Port-au-Prince.

Before any further discussion of the Fuller project between the two governments, political incidents in Haiti led rapidly to the events of July, 27 and 28. On July 27 President Guillaume fled to the French Legation, and on the same day took place a massacre of the political prisoners in the prison at Port-au-Prince. On the morning of July 28 President Guillaume was forcibly taken from French Legation and killed. On the afternoon of July 28 an American man-of-war dropped anchor in the harbor of Port-au-Prince and landed American forces. It should be borne in mind that through all of this the life of not a single American citizen had been taken or jeopardized.

The overthrow of Guillaume and its attending consequences did not constitute the cause of American intervention in Haiti, but merely furnished the awaited opportunity. Since July 28, 1915, American military forces have been in control of Haiti. These forces have been increased until there are

now somewhere near three thousand Americans under arms in the republic. From the very first, the attitude of the Occupation has been that it was dealing with a conquered territory. Haitian forces were disarmed, military posts and barracks were occupied, and the National Palace was taken as headquarters for the Occupation. After selecting a new and acceptable president for the country, steps were at once taken to compel the Haitian government to sign a convention in which it virtually foreswore its independence. This was accomplished by September 16, 1915; and although the terms of this convention provided for the administration of the Haitian customs by American civilian officials, all the principal custom houses of the country had been seized by military force and placed in charge of American Marine officers before the end of August. The disposition of the funds collected in duties from the time of the military seizure of the custom houses to the time of their administration by civilian officials is still a question concerning which the established censorship in Haiti allows no discussion.

It is interesting to note the wide difference between the convention which Haiti was forced to sign and the convention which was in course of diplomatic negotiation at the moment of intervention. The Fuller convention asked little of Haiti and gave something, the Occupation convention demands everything of Haiti and gives nothing. The Occupation convention is really the same convention which the Haitian government peremptorily refused to discuss in December, 1914, except that in addition to American control of Haitian finances it also provides for American control of the Haitian military forces. The Fuller convention contained neither of these provisions. When the United States found itself in a position to take what it had not even dared to ask, it used brute force and took it. But even a convention which practically deprived Haiti of its independence was found not wholly adequate for the accomplishment of all that was contemplated. The Haitian constitution still offered some embarrassments, so it was decided that Haiti must have a new constitution. It was drafted and presented to the Haitian assembly for adoption. The assembly balked—chiefly at the article in the proposed document removing the constitutional disability which prevented aliens from owning land in Haiti. Haiti had long considered the denial of this right to aliens as her main bulwark against overwhelming economic exploitation; and it must be admitted that she had

better reasons than the several states of the United States that have similar provisions.

The balking of the assembly resulted in its being dissolved by actual military force and the locking of doors of the Chamber. There has been no Haitian legislative body since. The desired constitution was submitted to a plebiscite by a decree of the President, although such a method of constitutional revision was clearly unconstitutional. Under the circumstances of the Occupation the plebiscite was, of course, almost unanimous for the desired change, and the new constitution was promulgated on June 18, 1918. Thus Haiti was given a new constitution by a flagrantly unconstitutional method. The new document contains several fundamental changes and includes a "Special Article" which declares:

All the acts of the Government of the United States during its military Occupation in Haiti are ratified and confirmed.

No Haitian shall be liable to civil or criminal prosecution for any act done by order of the Occupation or under its authority.

The acts of the courts martial of the Occupation, without, however, infringing on the right to pardon, shall not be subject to revision.

The acts of the Executive Power (the President) up to the promulgation of the present constitution are likewise ratified and confirmed.

The above is the chronological order of the principal steps by which the independence of a neighboring republic has been taken away, the people placed under foreign military domination from which they have no appeal, and exposed to foreign economic exploitation against which they are defenseless. All of this has been done in the name of the Government of the United States; however, without any act by Congress and without any knowledge of the American people.

The law by which Haiti is ruled today is martial law dispensed by Americans. There is a form of Haitian civil government, but it is entirely dominated by the military Occupation. President Dartiguenave, bitterly rebellious at heart as is every good Haitian, confessed to me the powerlessness of himself and his cabinet. He told me that the American

authorities give no heed to recommendations made by him or his officers; that they would not even discuss matters about which the Haitian officials have superior knowledge. The provisions of both the old and the new constitutions are ignored in that there is no Haitian legislative body, and there has been none since the dissolution of the Assembly in April, 1916. In its stead there is a Council of State composed of twenty-one members appointed by the president, which functions effectively only when carrying out the will of the Occupation. Indeed the Occupation often overrides the civil courts. A prisoner brought before the proper court, exonerated, and discharged, is, nevertheless, frequently held by the military. All government funds are collected by the Occupation and are dispensed at its will and pleasure. The greater part of these funds is expended for the maintenance of the military forces. There is the strictest censorship of the press. No Haitian newspaper is allowed to publish anything in criticism of the Occupation or the Haitian government. Each newspaper in Haiti received an order to that effect from the Occupation, *and the same order carried the injunction not to print the order*. Nothing that might reflect upon the Occupation administration in Haiti is allowed to reach the newspapers of the United States.

The Haitian people justly complain that not only is the convention inimical to the best interests of their country, but that the convention, such as it is, is not being carried out in accordance with the letter, nor in accordance with the spirit in which they were led to believe it would be carried out. Except one, all of the obligations in the convention which the United States undertakes in favor of Haiti are contained in the first article of that document, the other fourteen articles being made up substantially of obligations to the United States assumed by Haiti. But nowhere in those fourteen articles is there anything to indicate that Haiti would be subjected to military domination. In Article I the United States promises to "aid the Haitian government in the proper and efficient development of its agricultural, mineral, and commercial resources and in the establishment of the finances of Haiti on a firm and solid basis." And the whole convention and, especially, the protestations of the United States before the signing of the instrument can be construed only to mean that that aid would be extended through the supervision of civilian officials.

The one promise of the United States to Haiti not contained in the first article of the convention is that clause of Article XIV which says, "and, should the necessity occur, the United States will lend an efficient aid for the preservation of Haitian independence and the maintenance of a government adequate for the protection of life, property, and individual liberty." It is the extreme of irony that this clause which the Haitians had a right to interpret as a guarantee to them against foreign invasion should first of all be invoked against the Haitian people themselves, and offer the only peg on which any pretense to a right of military domination can be hung.

There are several distinct forces—financial, military, bureaucratic—at work in Haiti which, tending to aggravate the conditions they themselves have created, are largely self-perpetuating. The most sinister of these, the financial engulfment of Haiti by the National City Bank of New York, already alluded to, will be discussed in detail in a subsequent article. The military Occupation has made and continues to make military Occupation necessary. The justification given is that it is necessary for the pacification of the country. Pacification would never have been necessary had not American policies been filled with so many stupid and brutal blunders; and it will never be effective so long as "pacification" means merely the hunting of ragged Haitians in the hills with machine guns.

Then there is the force which the several hundred American civilian place-holders constitute. They have found in Haiti the veritable promised land of "jobs for deserving democrats" and naturally do not wish to see the present status discontinued. Most of these deserving democrats are Southerners. The head of the customs service of Haiti was a clerk of one of the parishes of Louisiana. Second in charge of the customs service of Haiti is a man who was Deputy Collector of Customs at Pascagoula, Mississippi [population, 3,379, 1910 Census]. The Superintendent of Public Instruction was a school teacher in Louisiana—a State which has not good schools even for white children; the financial advisor, Mr. McIlhenny, is also from Louisiana.

Many of the Occupation officers are in the same category with the civilian place-holders. These men have taken their wives and families to Haiti. Those at Port-au-Prince live in beautiful villas. Families that could not keep a hired girl in the United States have a half-dozen servants. They ride in automobiles—not their own. Every American head of a department in Haiti

has an automobile furnished at the expense of the Haitian Government, whereas members of the Haitian cabinet, who are theoretically above them, have no such convenience or luxury. While I was there, the President himself was obliged to borrow an automobile from the Occupation for a trip through the interior. The Louisiana school-teacher Superintendent of Instruction has an automobile furnished at government expense, whereas the Haitian Minister of Public Instruction, his supposed superior officer, has none. These automobiles seem to be chiefly employed in giving the women and children an airing each afternoon. It must be amusing, when it is not maddening to the Haitians, to see with what disdainful air these people look upon them as they ride by.

The platform adopted by the Democratic party at San Francisco said of the Wilson policy in Mexico:

The Administration, remembering always that Mexico is an independent nation and that permanent stability in her government and her institutions could come only from the consent of her own people to a government of her own making, has been unwilling either to profit by the misfortunes of the people of Mexico or to enfeeble their future by imposing from the outside a rule upon their temporarily distracted councils.

Haiti has never been so distracted in its councils as Mexico. And even in its moments of greatest distraction it never slaughtered an American citizen, it never molested an American woman, it never injured a dollar's worth of American property. And yet, the Administration whose lofty purpose was proclaimed as above—with less justification than Austria's invasion of Serbia, or Germany's rape of Belgium, without warrant other than the doctrine that "might makes right," has conquered Haiti. It has done this through the very period when, in the words of its chief spokesman, our sons were laying down their lives overseas "for democracy, for the rights of those who submit to authority to have a voice in their own government, for the rights and liberties of small nations." By command of the author of "pitiless publicity" and originator of "open covenants openly arrived at," it has enforced by the bayonet a covenant whose secret has been well guarded by a rigid censorship from the American nation, and kept a people enslaved

by the military tyranny which it was his avowed purpose to destroy throughout the world.

From The Nation of August 25, 1920.

II. WHAT THE UNITED STATES HAS ACCOMPLISHED

WHEN the truth about the conquest of Haiti—the slaughter of three thousand and practically unarmed Haitians, with the incidentally needless death of a score of American boys—begins to filter through the rigid Administration censorship to the American people, the apologists will become active. Their justification of what has been done will be grouped under two heads: one, the necessity, and two, the results. Under the first, much stress will be laid upon the "anarchy" which existed in Haiti, upon the backwardness of the Haitians and their absolute unfitness to govern themselves. The pretext which caused the intervention was taken up in the first article of this series. The characteristics, alleged and real, of the Haitian people will be taken up in a subsequent article. Now as to results: The apologists will attempt to show that material improvements in Haiti justify American intervention. Let us see what they are.

Diligent inquiry reveals just three: The building of the road from Port-au-Prince to Cape Haitien; the enforcement of certain sanitary regulations in the larger cities; and the improvement of the public hospital at Port-au-Prince. The enforcement of certain sanitary regulations is not so important as it may sound, for even under exclusive native rule, Haiti has been a remarkably healthy country and had never suffered from such epidemics as used to sweep Cuba and the Panama Canal region. The regulations, moreover, were of a purely minor character—the sort that might be issued by a board of health in any American city or town—and were in no wise fundamental, because there was no need. The same applies to the improvement of the hospital, long before the American Occupation, an effectively conducted institution but which, it is only fair to say, benefited considerably by the regulations and more up-to-date methods of American army surgeons—the best in the world. Neither of these accomplishments, however, creditable as they are, can well be put forward as a justification for military domination. The building of the great highway from Port-au-Prince to Cape Haitien is a monumental piece of work, but it is doubtful

whether the object in building it was to supply the Haitians with a great highway or to construct a military road which would facilitate the transportation of troops and supplies from one end of the island to the other. And this represents the sum total of the constructive accomplishment after five years of American Occupation.

Now, the highway, while doubtless the most important achievement of the three, involved the most brutal of all the blunders of the Occupation. The work was in charge of an officer of Marines who stands out even in that organization for his "treat 'em rough" methods. He discovered the obsolete Haitian *corvée* and decided to enforce it with the most modern Marine efficiency. The *corvée*, or road law, in Haiti provided that each citizen should work a certain number of days on the public roads to keep them in condition, or pay a certain sum of money. In the days when this law was in force the Haitian government never required the men to work the roads except in their respective communities, and the number of days was usually limited to three a year. But the Occupation seized men wherever it could find them, and no able-bodied Haitian was safe from such raids, which most closely resembled the African slave raids of past centuries. And slavery it was—though temporary. By day or by night, from the bosom of their families, from their little farms or while trudging peacefully on the country roads, Haitians were seized and forcibly taken to toil for months in far sections of the country. Those who protested or resisted were beaten into submission. At night, after long hours of unremitting labor under armed taskmasters, who swiftly discouraged any slackening of effort with boot or rifle butt, the victims were herded in compounds. Those attempting to escape were shot. Their terror-stricken families meanwhile were often in total ignorance of the fate of their husbands, fathers, brothers.

It is chiefly out of these methods that arose the need for "pacification." Many men of the rural districts became panic-stricken and fled to the hills and mountains. Others rebelled and did likewise, preferring death to slavery. These refugees largely make up the "caco" forces, to hunt down which has become the duty and the sport of American Marines, who were privileged to shoot a "caco" on sight. If anyone doubts that "caco" hunting is the sport of American Marines in Haiti, let him learn the facts about the death of Charlemagne. Charlemagne Peralte was a Haitian of education and culture and of great influence in his district. He was tried by an American

court-martial on the charge of aiding "cacos." He was sentenced, not to prison, however, but to five years of hard labor on the roads, and was forced to work in convict garb on the streets of Cape-Haitien. He made his escape and put himself at the head of several hundred followers in a valiant though hopeless attempt to free Haiti. The America of the Revolution, indeed the America of the Civil War, would have regarded Charlemagne not as a criminal but a patriot. He met his death not in open fight, not in an attempt at his capture, but through a dastard deed. While standing over his camp fire, he was shot in cold blood by an American Marine officer who stood concealed by the darkness, and who had reached the camp through bribery and trickery. This deed, which was nothing short of assassination, has been heralded as an example of American heroism. Of this deed, Harry Franck, writing in the *June Century* of "The Death of Charlemagne," says: "Indeed it is fit to rank with any of the stirring warrior tales with which history is seasoned from the days of the Greeks down to the recent world war." America should read "The Death of Charlemagne" which attempts to glorify a black smirch on American arms and tradition.

There is a reason why the methods employed in road building affected the Haitian country folk in a way in which it might not have affected the people of any other Latin-American country. Not since the independence of the country has there been any such thing as a peon in Haiti. The revolution by which Haiti gained her independence was not merely a political revolution, it was also a social revolution. Among the many radical changes wrought was that of cutting up the large slave estates into small parcels and allotting them among former slaves. And so it was that every Haitian in the rural districts lived on his own plot of land, a plot on which his family has lived for perhaps more than a hundred years. No matter how small or how large that plot is, and whether he raises much or little on it, it is his and he is an independent farmer.

The completed highway, moreover, continued to be a barb in the Haitian wound. Automobiles on this road, running without any speed limit, are a constant inconvenience or danger to the natives carrying their market produce to town on their heads or loaded on the backs of animals. I have seen these people scramble in terror often up the side or down the declivity of the mountain for places of safety for themselves and their animals as the machines snorted by. I have seen a market woman's horse take flight and

scatter the produce loaded on his back all over the road for several hundred yards. I have heard an American commercial traveler laughingly tell how on the trip from Cape Haitien to Port-au-Prince the automobile he was in killed a donkey and two pigs. It had not occurred to him that the donkey might be the chief capital of the small Haitian farmer and that the loss of it might entirely bankrupt him. It is all very humorous, of course, unless you happen to be the Haitian pedestrian.

The majority of visitors on arriving at Port-au-Prince and noticing the well-paved, well-kept streets, will at once jump to the conclusion that this work was done by the American Occupation. The Occupation goes to no trouble to refute this conclusion, and in fact it will by implication corroborate it. If one should exclaim, "Why, I am surprised to see what a well-paved city Port-au-Prince is!" he would be almost certain to receive the answer, "Yes, but you should have seen it before the Occupation." The implication here is that Port-au-Prince was a mudhole and that the Occupation is responsible for its clean and well-paved streets. It is true that at the time of the intervention, five years ago, there were only one or two paved streets in the Haitian capital, but the contracts for paving the entire city had been let by the Haitian Government, and the work had already been begun. This work was completed during the Occupation, *but the Occupation did not pave, and had nothing to do with the paving of a single street in Port-au-Prince.*

One accomplishment I did expect to find—that the American Occupation, in its five years of absolute rule, had developed and improved the Haitian system of public education. The United States has made some efforts in this direction in other countries where it has taken control. In Porto Rico, Cuba, and the Philippines, the attempt, at least, was made to establish modern school systems. Selected youths from these countries were taken and sent to the United States for training in order that they might return and be better teachers, and American teachers were sent to those islands in exchange. The American Occupation in Haiti has not advanced public education a single step. No new buildings have been erected. Not a single Haitian youth has been sent to the United States for training as a teacher, nor has a single American teacher, white or colored, been sent to Haiti. According to the general budget of Haiti, 1919-1920, there are teachers in the rural schools receiving as little as six dollars a month. Some of these teachers may not be worth more than six dollars a month. But after five years of American rule,

there ought not to be a single teacher in the country who is not worth more than that paltry sum.

Another source of discontent is the Gendarmerie. When the Occupation took possession of the island, it disarmed all Haitians, including the various local police forces. To remedy this situation the Convention (Article X), provided that there should be created,—

without delay, an efficient constabulary, urban and rural, composed of native Haitians. This constabulary shall be organized and officered by Americans, appointed by the President of Haiti upon nomination by the President of the United States.... These officers shall be replaced by Haitians as they, by examination conducted under direction of a board to be selected by the Senior American Officer of this constabulary in the presence of a representative of the Haitian Government, are found to be qualified to assume such duties.

During the first months of the Occupation officers of the Haitian Gendarmerie were commissioned officers of the marines, but the war took all these officers to Europe. Five years have passed and the constabulary is still officered entirely by marines, but almost without exception they are ex-privates or non-commissioned officers of the United States Marine Corps commissioned in the gendarmerie. Many of these men are rough, uncouth, and uneducated, and a great number from the South, are violently steeped in color prejudice. They direct all policing of city and town. It falls to them, ignorant of Haitian ways and language, to enforce every minor police regulation. Needless to say, this is a grave source of continued irritation. Where the genial American "cop" could, with a wave of his hand or club, convey the full majesty of the law to the small boy transgressor or to some equally innocuous offender, the strong-arm tactics for which the marines are famous, are apt to be promptly evoked. The pledge in the Convention that "these officers be replaced by Haitians" who could qualify, has, like other pledges, become a mere scrap of paper. Graduates of the famous French military academy of St. Cyr, men who have actually qualified for commissions in the French army, are denied the opportunity to fill even a lesser commission in the Haitian Gendarmerie, although such men, in addition to their pre-eminent qualifications of training, would, because of

their understanding of local conditions and their complete familiarity with the ways of their own country, make ideal guardians of the peace.

The American Occupation of Haiti is not only guilty of sins of omission, it is guilty of sins of commission in addition to those committed in the building of the great road across the island. Brutalities and atrocities on the part of American marines have occurred with sufficient frequency to be the cause of deep resentment and terror. Marines talk freely of what they "did" to some Haitians in the outlying districts. Familiar methods of torture to make captives reveal what they often do not know are nonchalantly discussed. Just before I left Port-au-Prince an American Marine had caught a Haitian boy stealing sugar off the wharf and instead of arresting him he battered his brains out with the butt of his rifle. I learned from the lips of American Marines themselves of a number of cases of rape of Haitian women by marines. I often sat at tables in the hotels and cafes in company with marine officers and they talked before me without restraint. I remember the description of a "caco" hunt by one of them; he told how they finally came upon a crowd of natives engaged in the popular pastime of cock-fighting and how they "let them have it" with machine guns and rifle fire. I heard another, a captain of marines, relate how he at a fire in Port-au-Prince ordered a "rather dressed up Haitian," standing on the sidewalk, to "get in there" and take a hand at the pumps. It appeared that the Haitian merely shrugged his shoulders. The captain of marines then laughingly said: "I had on a pretty heavy pair of boots and I let him have a kick that landed him in the middle of the street. Someone ran up and told me that the man was an ex-member of the Haitian Assembly." The fact that the man had been a member of the Haitian Assembly made the whole incident more laughable to the captain of marines.

Perhaps the most serious aspect of American brutality in Haiti is not to be found in individual cases of cruelty, numerous and inexcusable though they are, but rather in the American attitude, well illustrated by the diagnosis of an American officer discussing the situation and its difficulty: "The trouble with this whole business is that some of these people with a little money and education think they are as good as we are," and this is the keynote of the attitude of every American to every Haitian. Americans have carried American hatred to Haiti. They have planted the feeling of caste and color prejudice where it never before existed.

And such are the "accomplishments" of the United States in Haiti. The Occupation has not only failed to achieve anything worth while, but has made it impossible to do so because of the distrust and bitterness that it has engendered in the Haitian people. Through the present instrumentalities no matter how earnestly the United States may desire to be fair to Haiti and make intervention a success, it will not succeed. An entirely new deal is necessary. This Government forced the Haitian leaders to accept the promise of American aid and American supervision. With that American aid the Haitian Government defaulted its external and internal debt, an obligation, which under self-government the Haitians had scrupulously observed. And American supervision turned out to be a military tyranny supporting a program of economic exploitation. The United States had an opportunity to gain the confidence of the Haitian people. That opportunity has been destroyed. When American troops first landed, although the Haitian people were outraged, there was a feeling nevertheless which might well have developed into cooperation. There were those who had hopes that the United States, guided by its traditional policy of nearly a century and a half, pursuing its fine stand in Cuba, under McKinley, Roosevelt, and Taft, would extend aid that would be mutually beneficial to both countries. Those Haitians who indulged this hope are disappointed and bitter. Those members of the Haitian Assembly who, while acting under coercion were nevertheless hopeful of American promises, incurred unpopularity by voting for the Convention, are today bitterly disappointed and utterly disillusioned.

If the United States should leave Haiti today, it would leave more than a thousand widows and orphans of its own making, more banditry than has existed for a century, resentment, hatred and despair in the heart of a whole people, to say nothing of the irreparable injury to its own tradition as the defender of the rights of man.

From The Nation of September 4, 1920.

III. GOVERNMENT OF, BY, AND FOR THE NATIONAL CITY BANK

FORMER articles of this series described the Military Occupation of Haiti and the crowd of civilian place holders as among the forces at work in Haiti to maintain the present status in that country. But more powerful though less obvious, and more sinister, because of its deep and varied radications, is the force exercised by the National City Bank of New York. It seeks more than the mere maintenance of the present status in Haiti; it is constantly working to bring about a condition more suitable and profitable to itself. Behind the Occupation, working conjointly with the Department of State, stands this great banking institution of New York and elsewhere. The financial potentates allied with it are the ones who will profit by the control of Haiti. The United States Marine Corps and the various office-holding "deserving Democrats," who help maintain the status quo there, are in reality working for great financial interests in this country, although Uncle Sam and Haiti pay their salaries.

Mr. Roger L. Farnham, vice-president of the National City Bank, was effectively instrumental in bringing about American intervention in Haiti. With the administration at Washington, the word of Mr. Farnham supersedes that of anybody else on the island. While Mr. Bailly-Blanchard, with the title of minister, is its representative in name, Mr. Farnham is its representative in fact. His goings and comings are aboard vessels of the United States Navy. His bank, the National City, has been in charge of the Banque Nationale d'Haiti throughout the Occupation.^[1] Only a few weeks ago he was appointed receiver of the National Railroad of Haiti, controlling practically the entire railway system in the island with valuable territorial concessions in all parts.^[2] The \$5,000,000 sugar plant at Port-au-Prince, it is commonly reported, is about to fall into his hands.

^[1] The National City Bank originally (about 1911) purchased 2,000 shares of the stock of the Banque Nationale d'Haiti. After the Occupation it purchased 6,000 additional shares in the hands of three New York banking firms. Since then it has been negotiating for the complete control of the stock, the balance of which is held in France. The contract for this transfer of the Bank and the

granting of a new charter under the laws of Haiti were agreed upon and signed at Washington last February. But the delay in completing these arrangements is caused by the impasse between the State Department and the National City Bank, on the one hand, and the Haitian Government on the other, due to the fact that the State Department and the National City Bank insisted upon including in the contract a clause prohibiting the importation and exportation of foreign money into Haiti subject only to the control of the financial adviser. To this new power the Haitian Government refuses to consent.

[2] Originally, Mr. James P. McDonald secured from the Haitian Government the concession to build the railroads under the charter of the National Railways of Haiti. He arranged with W. R. Grace & Company to finance the concession. Grace and Company formed a syndicate under the aegis of the National City Bank which issued \$2,500,000 bonds, sold in France. These bonds were guaranteed by the Haitian Government at an interest of 6 per cent on \$32,500 for each mile. A short while after the floating of these bonds, Mr. Farnham became President of the company. The syndicate advanced another \$2,000,000 for the completion of the railroad in accordance with the concession granted by the Haitian Government. This money was used, but the work was not completed in accordance with the contract made by the Haitian Government in the concession. The Haitian Government then refused any longer to pay the interest on the mileage. These happenings were prior to 1915.

Now, of all the various responsibilities, expressed, implied, or assumed by the United States in Haiti, it would naturally be supposed that the financial obligation would be foremost. Indeed, the sister republic of Santo Domingo was taken over by the United States Navy for no other reason than failure to pay its internal debt. But Haiti for over one hundred years scrupulously paid its external and internal debt—a fact worth remembering when one hears of "anarchy and disorder" in that land—until five years ago when under the financial guardianship of the United States interest on both the internal and, with one exception, external debt was defaulted; and this in spite of the fact that specified revenues were pledged for the payment of this interest. Apart from the distinct injury to the honor and reputation of the country, the hardship on individuals has been great. For while the foreign debt is held particularly in France which, being under great financial obligations to the United States since the beginning of the war, has not been able to protest effectively, the interior debt is held almost entirely by Haitian citizens. Haitian Government bonds have long been the recognized substantial investment for the well-to-do and middle class people, considered as are in this country, United States, state, and municipal bonds. Non-payment on these securities has placed many families in absolute want.

What has happened to these bonds? They are being sold for a song, for the little cash they will bring. Individuals closely connected with the National Bank of Haiti are ready purchasers. When the new Haitian loan is floated it will, of course, contain ample provisions for redeeming these old bonds at par. The profits will be more than handsome. Not that the National Bank has not already made hay in the sunshine of American Occupation. From the beginning it has been sole depository of all revenues collected in the name of the Haitian Government by the American Occupation, receiving in addition to the interest rate a commission on all funds deposited. The bank is the sole agent in the transmission of these funds. It has also the exclusive note-issuing privilege in the republic. At the same time complaint is widespread among the Haitian business men that the Bank no longer as of old accommodates them with credit and that its interests are now entirely in developments of its own.

Now, one of the promises that was made to the Haitian Government, partly to allay its doubts and fears as to the purpose and character of the American intervention, was that the United States would put the country's finances on a solid and substantial basis. A loan for \$30,000,000 or more was one of the features of this promised assistance. Pursuant, supposedly, to this plan, a Financial Adviser for Haiti was appointed in the person of Mr. John Avery McIlhenny. Who is Mr. McIlhenny? That he has the cordial backing and direction of so able a financier as Mr. Farnham is comforting when one reviews the past record and experience in finance of Haiti's Financial Adviser as given by him in "Who's Who in America," for 1918-1919. He was born in Avery Island, Iberia Parish, La.; went to Tulane University for one year; was a private in the Louisiana State militia for five years; trooper in the U. S. Cavalry in 1898; promoted to second lieutenancy for gallantry in action at San Juan; has been member of the Louisiana House of Representatives and Senate; was a member of the U. S. Civil Service Commission in 1906 and president of the same in 1913; Democrat. It is under his Financial Advisership that the Haitian interest has been continued in default with the one exception above noted, when several months ago \$3,000,000 was converted into francs to meet the accumulated interest payments on the foreign debt. Dissatisfaction on the part of the Haitians developed over the lack of financial perspicacity in this transaction of Mr. McIlhenny because the sum was converted into francs at the rate of nine to

a dollar while shortly after the rate of exchange on French francs dropped to fourteen to a dollar. Indeed, Mr. McIlhenny's unfitness by training and experience for the delicate and important position which he is filling was one of the most generally admitted facts which I gathered in Haiti.

At the present writing, however, Mr. McIlhenny has become a conspicuous figure in the history of the Occupation of Haiti as the instrument by which the National City Bank is striving to complete the riveting, double-locking and bolting of its financial control of the island. For although it would appear that the absolute military domination under which Haiti is held would enable the financial powers to accomplish almost anything they desire, they are wise enough to realize that a day of reckoning, such as, for instance, a change in the Administration in the United States, may be coming. So they are eager and anxious to have everything they want signed, sealed, and delivered. Anything, of course, that the Haitians have fully "consented to" no one else can reasonably object to.

A little recent history: in February of the present year, the ministers of the different departments, in order to conform to the letter of the law (Article 116 of the Constitution of Haiti, which was saddled upon her in 1918 by the Occupation^[3] and Article 2 of the Haitian-American Convention^[4]) began work on the preparation of the accounts for 1918-1919 and the budget for 1920-1921. On March 22 a draft of the budget was sent to Mr. A. J. Maumus, Acting Financial Adviser, in the absence of Mr. McIlhenny who had at that time been in the United States for seven months. Mr. Maumus replied on March 29, suggesting postponement of all discussion of the budget until Mr. McIlhenny's return. Nevertheless, the Legislative body, in pursuance of the law, opened on its constitutional date, Monday, April 5. Despite the great urgency of the matter in hand, the Haitian administration was obliged to mark time until June 1, when Mr. McIlhenny returned to Haiti. Several conferences with the various ministers were then undertaken. On June 12, at one of these conferences, there arrived in the place of the Financial Adviser a note stating that he would be obliged to stop all study of the budget "until the time when certain affairs of considerable importance to the well-being of the country shall be finally settled according to recommendations made by me to the Haitian Government." As he did not give in his note the slightest idea what these important affairs were, the Haitian Secretary wrote asking for information, at the same time calling

attention to the already great and embarrassing delay, and reminding Mr. McIlhenny that the preparation of the accounts and budget was one of his legal duties as an official attached to the Haitian Government, of which he could not divest himself.

[3] "The general accounts and the budgets prescribed by the preceding article must be submitted to the Legislative Body by the Secretary of Finance not later than eight days after the opening of the Legislative Session."

[4] "The President of Haiti shall appoint, on the nomination of the President of the United States, a Financial Adviser who shall be attached to the Ministry of Finance, to whom the Secretary (of Finance) shall lend effective aid in the prosecution of his work. The Financial Adviser shall work out a system of public accounting, shall aid in increasing the revenues and in their adjustment to expenditures...."

On July 19 Mr. McIlhenny supplied his previous omission in a memorandum which he transmitted to the Haitian Department of Finance, in which he said: "I had instructions from the Department of State of the United States just before my departure for Haiti, in a part of a letter of May 20, to declare to the Haitian Government that it was necessary to give its immediate and formal approval to:

1. A modification of the Bank Contract agreed upon by the Department of State and the National City Bank of New York.
2. Transfer of the National Bank of the Republic of Haiti to a new bank registered under the laws of Haiti, to be known as the National Bank of the Republic of Haiti.
3. The execution of Article 15 of the Contract of Withdrawal prohibiting the importation and exportation of non-Haitian money except that which might be necessary for the needs of commerce in the opinion of the Financial Adviser."

Now, what is the meaning and significance of these proposals? The full details have not been given out, but it is known that they are part of a new monetary law for Haiti involving the complete transfer of the Banque Nationale d'Haiti to the National City Bank of New York. The document embodying the agreements, with the exception of the clause prohibiting the importation of foreign money, was signed at Washington, February 6, 1920, by Mr. McIlhenny, the Haitian Minister at Washington and the Haitian

Secretary of Finance. *The Haitian Government has officially declared that the clause prohibiting the importation and exportation of foreign money, except as it may be deemed necessary in the opinion of the Financial Adviser, was added to the original agreement by some unknown party.* It is for the purpose of compelling the Haitian Government to approve the agreements, including the "prohibition clause," that pressure is now being applied. Efforts on the part of business interests in Haiti to learn the character and scope of what was done at Washington have been thwarted by close secrecy. However, sufficient of its import has become known to understand the reasons for the unqualified and definite refusal of President Dartiguenave and the Government to give their approval. Those reasons are that the agreements would give to the National Bank of Haiti, and thereby to the National City Bank of New York, exclusive monopoly upon the right of importing and exporting American and other foreign money to and from Haiti, a monopoly which would carry unprecedented and extraordinarily lucrative privileges.

The proposal involved in this agreement has called forth a vigorous protest on the part of every important banking and business concern in Haiti with the exception, of course, of the National Bank of Haiti. This protest was transmitted to the Haitian Minister of Finance on July 30 past. The protest is signed not only by Haitians and Europeans doing business in that country but also by the leading American business concerns, among which are The American Foreign Banking Corporation, The Haitian-American Sugar Company, The Panama Railroad Steamship Line, The Clyde Steamship Line, and The West Indies Trading Company. Among the foreign signers are the Royal Bank of Canada, Le Comptoir Français, Le Comptoir Commercial, and besides a number of business firms.

We have now in Haiti a triangular situation with the National City Bank and our Department of State in two corners and the Haitian government in the third. Pressure is being brought on the Haitian government to compel it to grant a monopoly which on its face appears designed to give the National City Bank a strangle hold on the financial life of that country. With the Haitian government refusing to yield, we have the Financial Adviser who is, according to the Haitian-American Convention, a Haitian official charged with certain duties (in this case the approval of the budget and accounts),

refusing to carry out those duties until the government yields to the pressure which is being brought.

Haiti is now experiencing the "third degree." Ever since the Bank Contract was drawn and signed at Washington increasing pressure has been applied to make the Haitian government accept the clause prohibiting the importation of foreign money. Mr. McIlhenny is now holding up the salaries of the President, ministers of departments, members of the Council of State, and the official interpreter. [These salaries have not been paid since July 1.] And there the matter now stands.

Several things may happen. The Administration, finding present methods insufficient, may decide to act as in Santo Domingo, to abolish the President, cabinet, and all civil government—as they have already abolished the Haitian Assembly—and put into effect, by purely military force, what, in the face of the unflinching Haitian refusal to sign away their birthright, the combined military, civil, and financial pressure has been unable to accomplish. Or, with an election and a probable change of Administration in this country pending, with a Congressional investigation foreshadowed, it may be decided that matters are "too difficult" and the National City Bank may find that it can be more profitably engaged elsewhere. Indications of such a course are not lacking. From the point of view of the National City Bank, of course, the institution has not only done nothing which is not wholly legitimate, proper, and according to the canons of big business throughout the world, but has actually performed constructive and generous service to a backward and uncivilized people in attempting to promote their railways, to develop their country, and to shape soundly their finance. That Mr. Farnham and those associated with him hold these views sincerely, there is no doubt. But that the Haitians, after over one hundred years of self-government and liberty, contemplating the slaughter of three thousand of their sons, the loss of their political and economic freedom, without compensating advantages which they can appreciate, feel very differently, is equally true.

From The Nation of September 11, 1920.

IV. THE HAITIAN PEOPLE

THE first sight of Port-au-Prince is perhaps most startling to the experienced Latin-American traveler. Caribbean cities are of the Spanish-American type—buildings square and squat, built generally around a court, with residences and business houses scarcely interdistinguishable. Port-au-Prince is rather a city of the French or Italian Riviera. Across the bay of deepest blue the purple mountains of Gonave loom against the Western sky, rivaling the bay's azure depths. Back of the business section, spreading around the bay's great sweep and well into the plain beyond, rise the green hills with their white residences. The residential section spreads over the slopes and into the mountain tiers. High up are the homes of the well-to-do, beautiful villas set in green gardens relieved by the flaming crimson of the poinsettia. Despite the imposing mountains a man-made edifice dominates the scene. From the center of the city the great Gothic cathedral lifts its spires above the tranquil city. Well-paved and clean, the city prolongs the thrill of its first unfolding. Cosmopolitan yet quaint, with an old-world atmosphere yet a charm of its own, one gets throughout the feeling of continental European life. In the hotels and cafes the affairs of the world are heard discussed in several languages. The cuisine and service are not only excellent but inexpensive. At the Café Dereix, cool and scrupulously clean, dinner from *hors d'œuvres* to *glacés*, with wine, of course, recalling the famous antebellum hostelrys of New York and Paris, may be had for six gourdes [\$1.25].

A drive of two hours around Port-au-Prince, through the newer section of brick and concrete buildings, past the cathedral erected from 1903 to 1912, along the Champ de Mars where the new presidential palace stands, up into the Peu de Choses section where the hundreds of beautiful villas and grounds of the well-to-do are situated, permanently dispels any lingering question that the Haitians have been retrograding during the 116 years of their independence.

In the lower city, along the water's edge, around the market and in the Rue Républicaine, is the "local color." The long rows of wooden shanties, the

curious little booths around the market, filled with jabbering venders and with scantily clad children, magnificent in body, running in and out, are no less picturesque and no more primitive, no humbler, yet cleaner, than similar quarters in Naples, in Lisbon, in Marseilles, and more justifiable than the great slums of civilization's centers—London and New York, which are totally without aesthetic redemption. But it is only the modernists in history who are willing to look at the masses as factors in the life and development of the country, and in its history. For Haitian history, like history the world over, has for the last century been that of cultured and educated groups. To know Haitian life one must have the privilege of being received as a guest in the houses of these latter, and they live in beautiful houses. The majority have been educated in France; they are cultured, brilliant conversationally, and thoroughly enjoy their social life. The women dress well. Many are beautiful and all vivacious and chic. Cultivated people from any part of the world would feel at home in the best Haitian society. If our guest were to enter to the Cercle Bellevue, the leading club of Port-au-Prince, he would find the courteous, friendly atmosphere of a men's club; he would hear varying shades of opinion on public questions, and could scarcely fail to be impressed by the thorough knowledge of world affairs possessed by the intelligent Haitian. Nor would his encounters be only with people who have culture and savoir vivre; he would meet the Haitian intellectuals—poets, essayists, novelists, historians, critics. Take for example such a writer as Fernand Hibbert. An English authority says of him, "His essays are worthy of the pen of Anatole France or Pierre Loti." And there is Georges Sylvaïne, poet and essayist, conférencier at the Sorbonne, where his address was received with acclaim, author of books crowned by the French Academy, and an Officer of the Légion d'Honneur. Hibbert and Sylvaïne are only two among a dozen or more contemporary Haitian men of letters whose work may be measured by world standards. Two names that stand out preeminently in Haitian literature are Oswald Durand, the national poet, who died a few years ago, and Damocles Vieux. These people, educated, cultured, and intellectual, are not accidental and sporadic offshoots of the Haitian people; they *are* the Haitian people and they are a demonstration of its inherent potentialities.

However, Port-au-Prince is not all of Haiti. Other cities are smaller replicas, and fully as interesting are the people of the country districts. Perhaps the

deepest impression on the observant visitor is made by the country women. Magnificent as they file along the country roads by scores and by hundreds on their way to the town markets, with white or colored turbaned heads, gold-looped-ringed ears, they stride along straight and lithe, almost haughtily, carrying themselves like so many Queens of Sheba. The Haitian country people are kind-hearted, hospitable, and polite, seldom stupid but rather, quick-witted and imaginative. Fond of music, with a profound sense of beauty and harmony, they live simply but wholesomely. Their cabins rarely consist of only one room, the humblest having two or three, with a little shed front and back, a front and rear entrance, and plenty of windows. An aesthetic touch is never lacking—a flowering hedge or an arbor with trained vines bearing gorgeous colored blossoms. There is no comparison between the neat plastered-wall, thatched-roof cabin of the Haitian peasant and the traditional log hut of the South or the shanty of the more wretched American suburbs. The most notable feature about the Haitian cabin is its invariable cleanliness. At daylight the country people are up and about, the women begin their sweeping till the earthen or pebble-paved floor of the cabin is clean as can be. Then the yards around the cabin are vigorously attacked. In fact, nowhere in the country districts of Haiti does one find the filth and squalor which may be seen in any backwoods town in our own South. Cleanliness is a habit and a dirty Haitian is a rare exception. The garments even of the men who work on the wharves, mended and patched until little of the original cloth is visible, give evidence of periodical washing. The writer recalls a remark made by Mr. E. P. Pawley, an American, who conducts one of the largest business enterprises in Haiti. He said that the Haitians were an exceptionally clean people, that statistics showed that Haiti imported more soap per capita than any country in the world, and added, "They use it, too." Three of the largest soap manufactories in the United States maintain headquarters at Port-au-Prince.

The masses of the Haitian people are splendid material for the building of a nation. They are not lazy; on the contrary, they are industrious and thrifty. Some observers mistakenly confound primitive methods with indolence. Anyone who travels Haitian roads is struck by the hundreds and even thousands of women, boys, and girls filing along mile after mile with their farm and garden produce on their heads or loaded on the backs of animals. With modern facilities, they could market their produce much more

efficiently and with far less effort. But lacking them they are willing to walk and carry. For a woman to walk five to ten miles with a great load of produce on her head which may barely realize her a dollar is doubtless primitive, and a wasteful expenditure of energy, but it is not a sign of laziness. Haiti's great handicap has been not that her masses are degraded or lazy or immoral. It is that they are ignorant, due not so much to mental limitations as to enforced illiteracy. There is a specific reason for this. Somehow the French language, in the French-American colonial settlements containing a Negro population, divided itself into two branches, French and Creole. This is true of Louisiana, Martinique, Guadeloupe, and also of Haiti. Creole is an Africanized French and must not be thought of as a mere dialect. The French-speaking person cannot understand Creole, excepting a few words, unless he learns it. Creole is a distinct tongue, a graphic and very expressive language. Many of its constructions follow closely the African idioms. For example, in forming the superlative of greatness, one says in Creole, "He is great among great men," and a merchant woman, following the native idiom, will say, "You do not wish anything beautiful if you do not buy this." The upper Haitian class, approximately 500,000, speak and know French, while the masses, probably more than 2,000,000 speak only Creole. Haitian Creole is grammatically constructed, but has not to any general extent been reduced to writing. Therefore, these masses have no means of receiving or communicating thoughts through the written word. They have no books to read. They cannot read the newspapers. The children of the masses study French for a few years in school, but it never becomes their every-day language. In order to abolish Haitian illiteracy, Creole must be made a printed as well as a spoken language. The failure to undertake this problem is the worst indictment against the Haitian Government.

This matter of language proves a handicap to Haiti in another manner. It isolates her from her sister republics. All of the Latin-American republics except Brazil speak Spanish and enjoy an intercourse with the outside world denied Haiti. Dramatic and musical companies from Spain, from Mexico and from the Argentine annually tour all of the Spanish-speaking republics. Haiti is deprived of all such instruction and entertainment from the outside world because it is not profitable for French companies to visit the three or four French-speaking islands in the Western Hemisphere.

Much stress has been laid on the bloody history of Haiti and its numerous revolutions. Haitian history has been all too bloody, but so has that of every other country, and the bloodiness of the Haitian revolutions has of late been unduly magnified. A writer might visit our own country and clip from our daily press accounts of murders, robberies on the principal streets of our larger cities, strike violence, race riots, lynchings, and burnings at the stake of human beings, and write a book to prove that life is absolutely unsafe in the United States. The seriousness of the frequent Latin-American revolutions has been greatly over-emphasized. The writer has been in the midst of three of these revolutions and must confess that the treatment given them on our comic opera stage is very little farther removed from the truth than the treatment which is given in the daily newspapers. Not nearly so bloody as reported, their interference with people not in politics is almost negligible. Nor should it be forgotten that in almost every instance the revolution is due to the plotting of foreigners backed up by their Governments. No less an authority than Mr. John H. Allen, vice-president of the National City Bank of New York, writing on Haiti in the May number of *The Americas*, the National City Bank organ, who says, "It is no secret that the revolutions were financed by foreigners and were profitable speculations."

In this matter of change of government by revolution, Haiti must not be compared with the United States or with England; it must be compared with other Latin American republics. When it is compared with our next door neighbor, Mexico, it will be found that the Government of Haiti has been more stable and that the country has experienced less bloodshed and anarchy. And it must never be forgotten that throughout not an American or other foreigner has been killed, injured or, as far as can be ascertained, even molested. In Haiti's 116 years of independence, there have been twenty-five presidents and twenty-five different administrations. In Mexico, during its 99 years of independence, there have been forty-seven rulers and eighty-seven administrations. "Graft" has been plentiful, shocking at times, but who in America, where the Tammany machines and the municipal rings are notorious, will dare to point the finger of scorn at Haiti in this connection.

And this is the people whose "inferiority," whose "retrogression," whose "savagery," is advanced as a justification for intervention—for the ruthless slaughter of three thousand of its practically defenseless sons, with the

death of a score of our own boys, for the utterly selfish exploitation of the country by American big finance, for the destruction of America's most precious heritage—her traditional fair play, her sense of justice, her aid to the oppressed. "Inferiority" always was the excuse of ruthless imperialism until the Germans invaded Belgium, when it became "military necessity." In the case of Haiti there is not the slightest vestige of any of the traditional justifications, unwarranted as these generally are, and no amount of misrepresentation in an era when propaganda and censorship have had their heyday, no amount of slander, even in a country deeply prejudiced where color is involved, will longer serve to obscure to the conscience of America the eternal shame of its last five years in Haiti. *Fiat justitia, ruat coelum!*

From The Nation of September 25, 1920.

Documents

The following are from The Nation of August 28, 1920

The Proposed Convention with Haiti

THE Fuller Convention, submitted to the Haitian Minister of Foreign Affairs on May 22, 1915, by Mr. Paul Fuller, Jr., Envoy Extraordinary of the United States to Haiti, read as follows, the preliminary and concluding paragraphs being omitted:

1. The Government of the United States of America will protect the Republic of Haiti from outside attack and from the aggression of any foreign Power, and to that end will employ such forces of the army and navy of the United States as may be necessary.
 2. The Government of the United States of America will aid the Government of Haiti to suppress insurrection from within and will give effective support by the employment of the armed forces of the United States army and navy to the extent needed.
 3. The President of the Republic of Haiti covenants that no rights, privileges, or facilities of any description whatsoever will be granted, sold, leased, or otherwise accorded directly or indirectly by the Government of Haiti concerning the occupation or use of the Mole Saint-Nicolas to any foreign government or to a national or the nationals of any other foreign government.
 4. The President of the Republic of Haiti covenants that within six months from the signing of this convention, the Government will enter into an arbitration agreement for the settlement of such claims as American citizens or other foreigners may have against the Government of Haiti, such arbitration agreement to provide for the equal treatment of all foreigners to the end that the people of Haiti may have the benefit of competition between the nationals of all countries.
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The Haitian Counter-Project

THE counter-project of the Haitian Government, of June 4, 1915, with such of the modifications suggested by Mr. Fuller as the Haitian Government was willing to accept, read as follows:

I. The Government of the United States of America will lend its assistance to the Republic of Haiti for the preservation of its independence. For that purpose it agrees to intervene to prevent the intrusion of any Power and to repulse any act of aggression against the Republic of Haiti. To that end it will employ such forces of the army and navy of the United States as may be necessary.

II. The Government of the United States will facilitate the entry into Haiti of sufficient capital to assure the full economic development of that country, and to improve, within the immediate future, its financial situation, especially to bring about the unification of its debt in such fashion as to reduce the customs guaranties now required, and to lead to a fundamental money reform.

In order to give such capital all desirable guaranties the Government of Haiti agrees to employ in the customs service only officials whose ability and character are well known, and to replace those who in practice are found not to fill these conditions.

The Government of Haiti will also assure the protection of capital and in general of all foreign interests by the organization of a mounted rural constabulary trained in the most modern methods.

In the meantime if it be necessary the Government of the United States, after consultation with the Government of Haiti, will give its aid in the repression of serious disorders or troubles which might compromise these foreign interests.

The American forces which have in the given circumstances cooperated with the Haitian troops in the restoration of order, should

be retired from Haitian territory at the first request of the constitutional authority.

III. The President of the Republic of Haiti covenants that no rights, privileges, or facilities of any description whatsoever will be granted, sold, leased, or otherwise accorded directly or indirectly by the Government of Haiti concerning the occupation or use of the Mole Saint-Nicolas to any foreign government or to a national or the nationals of any other foreign government.

IV. The President of the Republic of Haiti covenants within six months of the signing of this convention to sign a convention of arbitration with the Powers concerned for the settlement of the diplomatic claims pending, which arbitration convention will provide for the equal treatment of all claimants, no special privileges being granted to any of them.

V. In case of difficulties regarding the interpretation of the clauses of the present convention, the high contracting parties agree to submit the difference to the Permanent Court of Arbitration at The Hague.

Mr. Fuller had suggested a further modification which the Haitian Government refused. It changed the final paragraph of Article II to read: "The American forces which have in the given circumstance cooperated with the Haitian troops, shall, when order has been reestablished, be retired," etc. His other suggestions were accepted with unimportant verbal changes.

The Haitian-United States Convention

THE convention between the United States and Haiti was ratified on September 16, 1915, after the occupation of the country by American troops. In its final form it is in interesting contrast with the suggested agreements printed above.

The United States and the Republic of Haiti, desiring to confirm and strengthen the amity existing between them by the most cordial cooperation in measures for their common advantage, and the Republic of Haiti desiring to remedy the present condition of its revenues and finances, to maintain the tranquillity of the Republic, to carry out plans for the economic development and prosperity of the Republic and its people, and the United States being in full sympathy with all of these aims and objects and desiring to contribute in all proper ways to their accomplishment;

The United States and the Republic of Haiti have resolved to conclude a convention with these objects in view, and have appointed for that purpose plenipotentiaries:

The President of the Republic of Haiti, Mr. Louis Borno, Secretary of State for Foreign Affairs and Public Instruction,

The President of the United States, Mr. Robert Beale Davis, Jr., Chargé d'Affaires of the United States of America;

Who, having exhibited to each other their respective powers, which are seen to be full in good and true form, have agreed as follows:

ARTICLE I. The Government of the United States will, by its good offices, aid the Haitian Government in the proper and efficient development of its agricultural, mineral, and commercial resources and in the establishment of the finances of Haiti on a firm and solid basis.

ARTICLE II. The President of Haiti shall appoint, upon nomination by the President of the United States, a General Receiver and such aids

and employees as may be necessary, who shall collect, receive, and apply all customs duties on imports and exports accruing at the several customs-houses and ports of entry of the Republic of Haiti.

The President of Haiti shall appoint, upon nomination by the President of the United States, a Financial Adviser who shall be an officer attached to the Ministry of Finance, to give effect to whose proposals and labors the Minister will lend efficient aid. The Financial Adviser shall devise an adequate system of public accounting, aid in increasing the revenues and adjusting them to the expenses, inquire into the validity of the debts of the Republic, enlighten both governments with reference to all eventual debts, recommend improved methods of collecting and applying the revenues, and make such other recommendations to the Minister of Finance as may be deemed necessary for the welfare and prosperity of Haiti.

ARTICLE III. The Government of the Republic of Haiti will provide by law or appropriate decrees for the payment of all customs duties to the General Receiver, and will extend to the Receivership, and to the Financial Adviser, all needful aid and full protection in the execution of the powers conferred and duties imposed herein; and the United States on its part will extend like aid and protection.

ARTICLE IV. Upon the appointment of the Financial Adviser, the Government of the Republic of Haiti in cooperation with the Financial Adviser, shall collate, classify, arrange, and make full statement of all the debts of the Republic, the amounts, character, maturity, and condition thereof, and the interest accruing and the sinking fund requisite to their final discharge.

ARTICLE V. All sums collected and received by the General Receiver shall be applied, first to the payment of the salaries and allowances of the General Receiver, his assistants, and employees and expenses of the Receivership, including the salary and expenses of the Financial Adviser, which salaries will be determined by the previous agreement; second, to the interest and sinking fund of the public debt of the Republic of Haiti; and third, to the maintenance of the constabulary

referred to in Article X, and then the remainder to the Haitian Government for the purposes of current expenses.

In making these applications the General Receiver will proceed to pay salaries and allowances monthly and expenses as they arise, and on the first of each calendar month will set aside in a separate fund the quantum of the collections and receipts of the previous month.

ARTICLE VI. The expenses of the Receivership, including salaries and allowances of the General Receiver, his assistants, and employees, and the salary and expenses of the Financial Adviser, shall not exceed 5 per cent of the collections and receipts from customs duties, unless by agreement by the two governments.

ARTICLE VII. The General Receiver shall make monthly reports of all collections, receipts, and disbursements to the appropriate officers of the Republic of Haiti and to the Department of State of the United States, which reports shall be open to inspection and verification at all times by the appropriate authorities of each of the said governments.

ARTICLE VIII. The Republic of Haiti shall not increase its public debt, except by previous agreement with the President of the United States, and shall not contract any debt or assume any financial obligation unless the ordinary revenues of the Republic available for that purpose, after defraying the expenses of the Government, shall be adequate to pay the interest and provide a sinking fund for the final discharge of such debt.

ARTICLE IX. The Republic of Haiti will not, without the assent of the President of the United States, modify the customs duties in a manner to reduce the revenues therefrom; and in order that the revenues of the Republic may be adequate to meet the public debt and the expenses of the Government, to preserve tranquillity, and to promote material prosperity, the Republic of Haiti will cooperate with the Financial Adviser in his recommendations for improvement in the methods of collecting and disbursing the revenues and for new sources of needed income.

ARTICLE X. The Haitian Government obligates itself, for the preservation of domestic peace, the security of individual rights, and the full observance of the provisions of this treaty, to create without delay an efficient constabulary, urban and rural, composed of native Haitians. This constabulary shall be organized and officered by Americans appointed by the President of Haiti, upon nomination by the President of the United States. The Haitian Government shall clothe these officers with the proper and necessary authority and uphold them in the performance of their functions. These officers will be replaced by Haitians as they, by examination conducted under direction of a board to be selected by the senior American officer of this constabulary in the presence of a representative of the Haitian Government, are found to be qualified to assume such duties. The constabulary herein provided for shall, under the direction of the Haitian Government, have supervision and control of arms and ammunition, military supplies and traffic therein, throughout the country. The high contracting parties agree that the stipulations in this article are necessary to prevent factional strife and disturbances.

ARTICLE XI. The Government of Haiti agrees not to surrender any of the territory of the Republic of Haiti by sale, lease, or otherwise, or jurisdiction over such territory, to any foreign government or Power, nor to enter into any treaty or contract with any foreign Power or Powers that will impair or tend to impair the independence of Haiti.

ARTICLE XII. The Haitian Government agrees to execute with the United States a protocol for the settlement, by arbitration or otherwise, of all pending pecuniary claims of foreign corporations, companies, citizens, or subjects against Haiti.

ARTICLE XIII. The Republic of Haiti, being desirous to further the development of its natural resources, agrees to undertake and execute such measures as, in the opinion of the high contracting parties, may be necessary for the sanitation and public improvement of the Republic under the supervision and direction of an engineer or engineers, to be appointed by the President of Haiti upon nomination of the President of the United States, and authorized for that purpose by the Government of Haiti.

ARTICLE XIV. The high contracting parties shall have authority to take such steps as may be necessary to insure the complete attainment of any of the objects comprehended in this treaty; and should the necessity occur, the United States will lend an efficient aid for the preservation of Haitian independence and the maintenance of a government adequate for the protection of life, property, and individual liberty.

ARTICLE XV. The present treaty shall be approved and ratified by the high contracting parties in conformity with their respective laws, and the ratifications thereof shall be exchanged in the City of Washington as soon as may be possible.

ARTICLE XVI. The present treaty shall remain in full force and virtue for the term of ten years, to be counted from the day of exchange of ratifications, and further for another term of ten years if, for specific reasons presented by either of the high contracting parties, the purpose of this treaty has not been fully accomplished.

In faith whereof, the respective plenipotentiaries have signed the present convention in duplicate, in the English and French languages, and have thereunto affixed their seals.

Done at Port-au-Prince (Haiti), the 16th day of September in the year of our Lord one thousand nine hundred and fifteen.

ROBERT BEALE DAVIS, JR., Chargé d'Affaires of the United States

LOUIS BORNO, Secretary of State for Foreign Affairs and Public
Instruction

The New Constitution of Haiti

THE new Constitution of the Republic of Haiti, ratified under the American Occupation, altered the former Constitution in regard to the important subject of the right of foreigners to hold land. Article 6 of the old Constitution reads:

No one, unless he is a Haitian, may be a holder of land in Haiti, regardless of what his title may be, nor acquire any real estate.

Article 5 of the Constitution of 1918 makes the following provision:

The right to hold property is given to foreigners residing in Haiti, and to societies formed by foreigners, for dwelling purposes and for agricultural, commercial, industrial, or educational enterprises. This right shall be discontinued five years after the foreigner shall have ceased to reside in the country, or when the activities of these companies shall have ceased.

The Haitian President's Proclamation

IN the *Moniteur*, official organ of the Republic of Haiti, for September 4, 1915, in a column headed "Liberty, Equality, Fraternity," the president of Haiti published a proclamation on the situation arising from the occupation by American troops of the customs-house at Port-au-Prince.

Haitians! At the very moment when the Government, engaged in negotiations to settle the question of the presence of American military forces on Haitian territory, was looking forward to a prompt solution in accordance with law and justice, it finds itself faced with the simple seizure of possession of the customs administration of the capital.

Previously the customs-houses of several other cities of the republic had been occupied in like fashion, and whenever the news of such occupation reached the National Palace or the Department of Finances, it was followed by an energetic protest, demanding that the diplomatic representative of the American Government residing at Port-au-Prince restore the customs-houses and put an end to acts so contrary to the relations at present existing between the Government of Haiti and the Government of the United States of North America.

Haitians! In bringing these facts officially to the attention of the country, I owe it to myself to declare further, in the most formal fashion, to you and to the entire civilized world, that the order to carry out these acts so destructive of the interests, rights, and sovereignty of the Haitian people is not due to anything which can be cited against the patriotism, devotion, spirit of sacrifice, and loyalty of those to whom the destinies of the country have been intrusted. You are the judges of that.

Nor will I conceal the fact that my astonishment is greater because the negotiations, which had been undertaken in the hope of an agreement upon the basis of propositions presented by the American Government itself, after having passed through the ordinary phases of diplomatic

discussion, with frankness and courtesy on both sides, have now been relieved of the only obstacles which had hitherto appeared to stand in their way.

Haitians! In this agonizing situation, more than tragic for every truly Haitian soul, the Government, which intends to preserve full national sovereignty, will be able to maintain the necessary resolution only if all are united in exercising their intelligence and energy with it in the present task of saving the nation....

SUDRE DARTIGUENAVE

Given at the National Palace, September 2, 1915, in the 112th year of our independence.

The following are from the Nation of September 11, 1920

Why Haiti Has No Budget

AT the session of the Haitian National Assembly on August 4, the President of the Republic of Haiti and the Haitian Minister of Finance laid before that body the course of the American Financial Adviser which had made it impossible to submit to the Assembly accounts and budgets in accordance with the Constitution of Haiti and the Haiti-American Convention. The statement which follows is taken from the official Haitian gazette, the *Moniteur* of August 7.

MESSAGE OF THE PRESIDENT

Gentlemen of the Council of State: On account of unforeseen circumstances it has not been possible for the Government of the Republic to present to you in the course of the session of your high assembly which closes today (August 4) the general accounts of the receipts and expenditures for 1918-1919 and the budget for 1920-1921, in accordance with the Constitution.

It is certainly an exceptional case, the gravity of which will not escape you. You will learn the full details from the report which the Secretary of Finance and Commerce will submit to you, in which it will be shown that the responsibility for it does not fall on the Executive Power....

In the life of every people there come moments when it must know how to be resigned and to suffer. Are we facing one of those moments? The attitude of the Haitian people, calm and dignified, persuades me that, marching closely with the Government of the Republic, there is no suffering which it is not disposed to undergo to safeguard and secure the triumph of its rights.

DARTIGUENAVE

REPORT OF THE SECRETARY OF FINANCE AND COMMERCE

Gentlemen of the Council of State: Article 116 of the Constitution prescribes in its first paragraph: "The general accounts and the budgets prescribed by the preceding article must be submitted to the legislative body by the Secretary of Finance not later than eight days after the opening of the legislative session."

And Article 2 of the American-Haitian Convention of September 16, 1915, stipulates in its second paragraph: "The President of Haiti shall appoint, on the nomination of the President of the United States, a Financial Adviser, *who shall be a civil servant attached to the Ministry of Finance*, to whom the Secretary shall lend effective aid in the prosecution of his work. The Financial Adviser shall work out a system of public accounting, shall aid in increasing the revenues and in their adjustment to expenditures...."

Since February of this year (1920) the secretaries of the various departments, in order to conform to the letter of Article 116 of the Constitution, and to assure continuity of public service in the matter of receipts and expenditures, set to work at the preparation of the budgets for their departments for 1920-21.

By a dispatch dated March 22, 1920, the Department of Finance sent the draft budgets to Mr. A. J. Maumus, Acting Financial Adviser, for preliminary study by that official. But the Acting Adviser replied to the Department by a letter, of March 29: "I suggest that, in view of the early return of Mr. John McIlhenny, the Financial Adviser, measures be taken to postpone all discussion regarding the said draft budgets between the different departments and the Office [of the Financial Adviser] to permit him to take part in the discussions."

Nevertheless, the regular session was opened on the constitutional date, Monday, April 5, 1920. Mr. John McIlhenny, the titular Financial Adviser, absent in the United States since October, 1919, on a financial mission for the Government, prolonged his stay in America, detained no doubt by the insurmountable difficulties in the accomplishment of his mission (the placing of a Haitian loan on the New York market). Since on the one hand the Adviser could not overcome these difficulties, and on the other hand his presence at Port-au-Prince was

absolutely necessary for the preparation of the budget in conformity with the Constitution and the Haitian-American Convention, the Government deemed it essential to ask him to return to Port-au-Prince for that purpose. The Government in so doing secured the good offices of the American Legation, and Mr. McIlhenny returned from the United States about the first of June. The Legislature had already been in session almost two months.

About June 15 the Adviser began the study of the budget with the secretaries. The conferences lasted about twelve days, and in that time, after courteous discussions, after some cuts, modifications, and additions, plans for the following budgets were agreed upon:

1. Ways and Means
2. Foreign Relations
3. Finance and Commerce
4. Interior

On Monday, July 12, at 3.30, the hour agreed upon between the ministers and the Adviser, the ministers met to continue the study of the budget which they wanted to finish quickly.... Between 4 and 4:30 the Secretary of Finance received a letter from the Adviser which reads as follows:

"I find myself obliged to stop all study of the budget until certain affairs of considerable importance for the welfare of the country shall have been finally settled according to the recommendations made by me to the Haitian Government.

"Please accept, Mr. Secretary, the assurance of my highest consideration,

JOHN MCILHENNY"

Such an unanticipated and unjustifiable decision on the part of Mr. McIlhenny, an official attached to the Ministry of Finance, caused the whole Government profound surprise and warranted dissatisfaction....

On July 13 the Department of Finance replied to the Financial Adviser as follows:

"I beg to acknowledge your letter of July 12, in which you say, 'I find myself obliged, etc....'

"In taking note of this declaration, the importance and gravity of which certainly cannot escape you, I can only regret in the name of the Government:

"1. That you omitted to tell me with the precision which such an emergency demands what are the affairs of an importance so considerable for the welfare of the country and the settlement of which, according to the recommendations made by you, is of such great moment that you can subordinate to that settlement the continuation of the work on the budget?

"2. That you have taken such a serious step without considering that in so doing you have divested yourself of one of the essential functions which devolves upon you as Financial Adviser attached to the Department of Finance.

"The preparation of the budget of the state constitutes one of the principal obligations of those intrusted with it by law, because the very life of the nation depends upon its elaboration. The Legislature has been in session since April 5 last. By the Constitution the draft budgets and the general accounts should be submitted to the legislative body within eight days after the opening of the session, that is to say by April 13. The draft budgets were sent to your office on March 22.

"By reason of your absence from the country, the examination of these drafts was postponed, the acting Financial Adviser not being willing to shoulder the responsibility; we refer you to his letters of March 29 and of April 17 and 24. Finally ... you came back to Port-au-Prince, and after some two weeks, you began with the secretaries to study the draft budgets.

"The Government therefore experiences a very disagreeable surprise on reading your letter of July 12. It becomes my duty to inform you of that disagreeable surprise, to formulate the legal reservations in the case, and to inform you finally that you bear the sole responsibility for the failure to present the budget in due time.

"FLEURY FEQUIERE, Secretary of Finance"

On July 19, Mr. Bailly-Blanchard, the American Minister, placed in the hands of the President of the Republic a memorandum emanating from Mr. McIlhenny, in which the latter formulates against the Government complaints sufficient, according to him, to explain and justify the discontinuance of the preparation of the budget, announced in his letter of July 12.

Memorandum of Mr. McIlhenny

I had instructions from the Department of State of the United States just before my departure for Haiti, in a passage of a letter of May 20, to declare to the Haitian Government that it was necessary to give its immediate and formal approval:

1. To a modification of the Bank Contract agreed upon by the Department of State and the National City Bank of New York.
2. To the transfer of the National Bank of the Republic of Haiti to a new bank registered under the laws of Haiti to be known as the National Bank of the Republic of Haiti.
3. To the execution of Article 15 of the Contract of Withdrawal, prohibiting the importation and exportation of non-Haitian money, except that which might be necessary for the needs of commerce in the opinion of the Financial Adviser.
4. To the immediate vote of a territorial law which has been submitted to the Department of State of the United States and which has its approval.

On my arrival in Haiti I visited the President with the American Minister and learned that the modifications of the bank contract and the transfer of the bank had been agreed to and the only reason why the measure had not been made official was because the National City Bank and the National Bank of Haiti had not yet presented to the Government their full powers. He declared that the Government did not agree to the publication of a decree executing the Contract of Withdrawal because it did not consider that the economic condition of

the country justified it at that time. To which I replied that the Government of the United States expected the execution of Article 15 of the Contract of Withdrawal as a direct and solemn engagement of the Haitian Government, to which it was a party, and I had instructions to insist upon its being put into execution at once....

The Counter Memoir

To this memorandum the Executive Authority replied by a counter memoir which read in part as follows:

"The modifications proposed by the Department of State [of the United States] to the bank contract, studied by the Haitian Government, gave rise to counter propositions on the part of the latter, which the Department of State would not accept. The Haitian Government then accepted these modifications in nine articles in the form in which they had been concluded and signed at Washington, on Friday, February 6, 1920, by the Financial Adviser, the Haitian Minister, and the [Haitian] Secretary of Finance. But when Messrs. Scarpa and Williams, representing respectively and officially the National Bank of Haiti and the National City Bank of New York, came before the Secretary of Finance for his signature to the papers relative to the transfer of the National Bank of Haiti to the National City Bank of New York, the Secretary of Finance experienced a disagreeable surprise in finding out that to Article 9 of the document signed at Washington, February 6, 1920, and closed as stated above, there had been added an amendment bearing on the prohibition of non-Haitian money. The Secretary could only decline the responsibility of this added paragraph of which he had not the slightest knowledge and which consequently had not been submitted to the Government for its agreement. It is for this reason alone that the agreement is not signed up to this time. The Government does not even yet know who was the author of this addition to the document to which its consent had never been asked."

Today, gentlemen, you have come to the end of the regular session for this year. Four months have run by without the Government being able to present to you the budget for 1920-1921.... Such are the facts, in brief, that have marked our relations recently with Mr. McIlhenny....

FLEURY FEQUIERE, Secretary of Finance

The Businessmen's Protest

THE protest printed below, against Article 15 of the Contract of Withdrawal, was sent to the Haitian Secretary of Finance on July 30.

The undersigned bankers, merchants, and representatives of the various branches of the financial and commercial activities in Haiti have the honor to submit to the high appreciation of the Secretary of State for Finance the following consideration:

They have been advised from certain sources that pressing recommendations have been made to the Government of Haiti.

1. That a law be immediately voted by which would be prohibited the importation or exportation of all money not Haitian, except that quantity of foreign money which, in the opinion of the Financial Adviser, would be sufficient for the needs of commerce.

2. That in the charter of the Banque Nationale de la Republique d'Haiti there be inserted an article giving power to the Financial Adviser together with the Banque Nationale de la Republique d'Haiti to take all measures concerning the importation or exportation of non-Haitian monies.

The undersigned declare that the adoption of such a measure, under whatever form it may be, would be of a nature generally contrary to the collective interests of the Haitian people and the industry of Haiti. It would be dangerous to substitute the will of a single man, however eminent he might be, however honorable, however infallible, for a natural law which regulates the movements of the monetary circulation in a country.

It would be more dangerous yet to introduce in the contract of the Banque Nationale de la Republique d'Haiti a clause which would assure this establishment a sort of monopoly in the foreign money market, which constitutes the principal base of the operations of high

commerce, when it has already the exclusive privilege of emission of bank notes. Such a clause would make of all other bankers and merchants its humble tributaries, obeying its law and its caprices....

(Signed) THE ROYAL BANK OF CANADA; AMERICAN FOREIGN BANKING CORPORATION; HAITIAN AMERICAN SUGAR CO.; RAPOREL S.S. LINE; P. C. S.; ELECTRIC LIGHT CO.; PANAMA LINE; ED. ESTEVE & CO.; CLYDE LINE; COMPTOIR COMMERCIAL; GEBARA & CO.; ALFRED VIEUX; V. G. MAKHLOUF; N. SILVERA; SIMMONDS FRERES; ROBERTS, DUTTON & CO.; WEST INDIES TRADING CO.; J. FADOUL & CO.; R. BROUARD; A. DE MATTEIS & CO.; J. M. RICHARDSON & CO.; COMPTOIR FRANCAIS; H. DEREIX; E. ROBELIN; F. CHERIEZ; I. J. BIGIO, AND GEO. H. MACFADDEN.

"By Order of the American Minister"

CORRESPONDENCE regarding the refusal of the Financial Adviser of Haiti, an American, but an official of the Haitian Department of Finance, to pay the salaries for the month of July, 1920, of the President and certain other officials of the Haitian Republic, revealing that the action was taken by order of the American Minister to Haiti, without explanation and without authority in the Haitian Constitution or in the Haiti-American Convention, was printed in the *Moniteur* for August 14.

I.

PORT-AU-PRINCE, August 2, 1920.

MR. A. J. MAUMUS, Receiver General of Customs

In accordance with the suggestion made to the Financial Adviser on July 24, your office began on the morning of July 30 to pay the salaries for that month to the officials and public employees at Port-au-Prince.

Nevertheless up to this morning, August 2, no checks have been delivered to His Excellency the President of the Republic, the secretaries of the various departments, the state councilors, and the palace interpreter.

In calling your attention to this fact I ask that you will please inform me of the reasons for it.

FLEURY FEQUIERE, Secretary of Finance.

II.

PORT-AU-PRINCE, August 2, 1920.

TO THE SECRETARY OF FINANCE AND COMMERCE

I have the honor to acknowledge the receipt of your note of August 2 in which you ask this office to inform you regarding the reasons for the

non-delivery, up to the present time, of the checks for His Excellency the President of the Republic, for the departmental secretaries, the state councilors, and the palace interpreter, for the month of July.

In reply this office hastens to inform you that up to the present time it has not been put in possession of the mandates and orders regarding these payments.

A. J. MAUMUS, Receiver General.

III.

PORT-AU-PRINCE, August 2, 1920.

TO THE FINANCIAL ADVISER

The Department of Finance, informed that checks for His Excellency the President of the Republic, the departmental secretaries, the state councilors, and the palace interpreter had not been delivered up to this morning, August 2, reported the fact to the Receiver General of Customs asking to be informed regarding the reasons. The Receiver General replied immediately that the delay was due to his failure to receive the necessary mandates and orders. But these papers were sent to you by the Department of Finance on July 21, and were returned by the payment service of the Department of the Interior on July 26, a week ago.

I inclose copies of the note from the Department of Finance to the Receiver General, and of Mr. Maumus's reply.

I should like to believe that bringing this matter to your attention would be sufficient to remedy it.

FLEURY FEQUIERE, Secretary of Finance.

IV.

PORT-AU-PRINCE, August 5, 1920.

TO THE SECRETARY OF FINANCE AND COMMERCE

I have the honor to acknowledge the receipt of your note of August 2, regarding the delay in payment of the salaries of the President of the Republic, secretaries, and state councilors.

In reply I have the honor to inform you that the payment of these salaries has been suspended by order of the American Minister until further orders are received from him.

J. MCILHENNY, Financial Adviser.

V.

PORT-AU-PRINCE, August 10, 1920.

TO THE FINANCIAL ADVISER

I acknowledge receipt of your note of August 5 in reply to mine of August 2 asking information regarding the reasons for your non-payment of the salaries for last July due to His Excellency the President of the Republic, the secretaries, and state councilors, and the palace interpreter.

I note the second paragraph of your letter, in which you say, "In reply, etc."

I do not know by what authority the American Minister can have given you such instructions or by what authority you acquiesced. The non-payment of the salaries due the members of the Government constitutes a confiscation vexatious for them and for the entire country. It is not the function of this department to judge the motives which led the American Minister to take so exceptionally serious a step; but it is the opinion of the Government that the Financial Adviser, a Haitian official, was not authorized to acquiesce.

FLEURY FEQUIERE, Secretary of Finance.

VI.

PORT-AU-PRINCE, August 5, 1920.

MR. A. BAILLY-BLANCHARD, American Minister

I have the honor to inform Your Excellency that the offices of the Financial Adviser and of the Receiver General have not yet delivered the checks for the July salaries of His Excellency the President of the Republic, of the secretaries, state councilors, and palace interpreter, although all other officials were paid on July 30.

The Secretary of Finance wrote to the Receiver General asking information on the subject, and was informed that he had not received the necessary mandates and orders. The fact of the non-delivery of the checks and the reply of the Receiver General were then brought to the attention of the Financial Adviser, who has not yet replied.

In informing your Legation of this situation, I call the attention of Your Excellency to this new attitude of the Financial Adviser, a Haitian official, to the President of the Republic and the other members of the Government, an attitude which is an insult to the entire nation.

J. BARAU, Secretary of Foreign Affairs.

VII.

PORT-AU-PRINCE, August 6, 1920.

MR. A. BAILLY-BLANCHARD, American Minister

I have the honor to inclose a copy of a note from the Financial Adviser to the Secretary of Finance, replying to a request for information regarding the non-payment of checks....

In his reply the Financial Adviser informs the Department of Finance that "the payment of these salaries has been suspended by order of the American Minister until further orders are received from him."

My Government protests against this act of violence which is an attack upon the dignity of the people and Government of Haiti.

J. BARAU, Secretary of Foreign Affairs.

VIII.

PORT-AU-PRINCE, August 6, 1920.

MR. J. BARAU, Secretary of Foreign Affairs

I have the honor to acknowledge the receipt of Your Excellency's note under date of August 5.

In reply I have to state that the action of the Financial Adviser therein referred to was taken by direction of this Legation.

A. BAILLY-BLANCHARD, American Minister.

IX.

PORT-AU-PRINCE, August 7, 1920.

MR. A. BAILLY-BLANCHARD, American Minister

In reply to my letter of August 5 in which I had the honor to inform Your Excellency of the non-payment of checks, ... Your Excellency informs me that it is by direction of the Legation of the United States that the Financial Adviser acted.

My Government takes note of your declaration.

J. BARAU, Secretary of Foreign Affairs.

The Concession of the National City Bank

SIMULTANEOUSLY with the non-payment of the July salaries of the President and other officials of the Haitian Republic, the Haitian Minister of Finance received from the Financial Adviser, an American, nominally a Haitian official, but acting under instructions from the American Government, the following letter urging immediate ratification of a modified form of agreement between the United States Department of State and the National City Bank of New York. It was widely assumed in Haiti that this letter supplied the key to the unexplained non-payment of salaries, ordered by Mr. A. Bailly-Blanchard, the American Minister. The letter was printed in the *Moniteur* for August 14.

PORT-AU-PRINCE, August 2, 1920

TO THE SECRETARY OF FINANCE

I have the honor to inform you that I have been instructed by my Government that in view of the continual delay in obtaining the consent of the Haitian Government to the transfer to the new bank of the modified concession as agreed upon between the Government of the United States and the National City Bank, the Government of the United States has agreed to let the operations of the National Bank of the Republic of Haiti continue indefinitely on the French contract at present existing, without amendment.

I desire urgently to draw your attention to the fact that it would be most desirable in the interest of the Haitian people that the Government of Haiti should give its immediate consent to the proposed modifications of the contract and to accept the transfer of the bank rather than see the present contract continue with its present clauses.

JOHN MCILHENNY, Financial Adviser

Transcriber's Notes:

Page numbers have been removed for blank pages in the text.

Spelling, punctuation and capitalization has been retained as in the original publication except as follows:

Page 27: Changed "glaces" to "glacés"

Page 40: Added closing quotation mark to paragraph opening with the words: "And Article 2 of the American-Haitian Convention"

Page 44: Added period to end of sentence, "It is for this reason alone that the agreement is not signed up to this time"

*** END OF THE PROJECT GUTENBERG EBOOK SELF-
DETERMINING HAITI ***

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